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WESTLAW California Code of Regulations

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§ 301. Periodic Written Reports.

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Title 11. Law
Division 1. Attorney General
Chapter 4. Regulations Adopted Pursuant to the Supervision of Trustees and Fundraisers for Charitable Purposes Act (Refs & Annos)
Article 1. Registration, Reporting, and General Supervision of Trustees and Fundraisers

11 CCR § 301

§ 301. Periodic Written Reports.

Currentness

(a) Except as otherwise provided in the Act, every charitable corporation, unincorporated association, trustee, or other person subject to the reporting requirements of the Act shall also file with the Attorney General periodic written reports, under penalty of perjury, setting forth information as to the nature of the assets held for charitable purposes and the administration thereof by such corporation, unincorporated association, trustee, or other person.

(b) Except as otherwise provided in these regulations, the following reports must be filed with the Registry of Charities and Fundraisers annually by all registrants: (1) the Annual Registration Renewal Fee Report, (“Form RRF-1” Rev. 01/2024), hereby incorporated by reference, and (2) Internal Revenue Service Form 990, 990-PF, 990-EZ, or 1120, together with all attachments and schedules as applicable, in the same form as filed with the Internal Revenue Service. Schedule B to Internal Revenue Service Form 990 is not required. At the time of filing the annual renewal of registration form (Form RRF-1), the registrant must submit a fee, as set forth in section 306.

(c) A registrant whose revenue falls below the threshold for filing IRS Form 990-EZ, shall file Form RRF-1 with the Registry of Charities and Fundraisers, together with the Annual Treasurer's Report (“Form CT-TR-1” Rev. 01/2024), hereby incorporated by reference, sufficient to identify and account for assets, liabilities, income and expenses.

(d) A registrant that is not exempt from taxation under federal law shall use Internal Revenue Service Form 990 or 1120 to comply with the reporting provisions of the Act. The form shall include, at the top of the page, in 10-point type, all capital letters, “THIS ORGANIZATION IS NOT EXEMPT FROM TAXATION.”

(e) Reporting requirements for a commercial fundraiser for charitable purposes, fundraising counsel for charitable purposes, and commercial coventurer are set forth in section 313 of these regulations. Reporting requirements for a charitable fundraising platform and additional reporting requirements for a platform charity are set forth in section 315 of these regulations.

(f) The reporting and registration renewal requirements in the Act and Article 1 of these regulations apply to any unregistered person or entity for the time period that registration was required.

Credits

NOTE: Authority cited: Sections 12586, 12587 and 12599.10, Government Code. Reference: Sections 12581, 12582, 12582.1, 12583, 12586, 12587, 12599, 12599.1, 12599.2, 12599.8, 12599.9 and 12599.10, Government Code.

HISTORY

1. Amendment filed 5-30-74; effective thirtieth day thereafter (Register 74, No. 22).

2. Amendment of section and new NOTE filed 10-7-99; operative 11-6-99 (Register 99, No. 41).

3. Amendment of section and NOTE filed 6-13-2005; operative 6-13-2005 pursuant to Government Code section 11343.4 (Register 2005, No. 24).

4. Change without regulatory effect amending first paragraph and Form RRF-1 (incorporated by reference) filed 11-27-2017 pursuant to section 100, title 1, California Code of Regulations (Register 2017, No. 48).

5. Amendment of section and NOTE filed 11-8-2019; operative 2-1-2020 pursuant to Government Code section 11343.4(b)(2) (Register 2019, No. 45).

6. Change without regulatory effect amending the Annual Registration Renewal Fee Report Form (incorporated by reference) and amending second paragraph filed 6-22-2020 pursuant to section 100, title 1, California Code of Regulations (Register 2020, No. 26).

7. Amendment of second paragraph filed 11-23-2021; operative 1-1-2022 (Register 2021, No. 48). Filing deadline specified in Government Code section 11349.3(a) extended 60 calendar days pursuant to Executive Order N-40-20 and an additional 60 calendar days pursuant to Executive Order N-71-20.

8. Amendment of section and NOTE filed 3-26-2024; operative 3-26-2024 pursuant to Government Code section 11343.4(b)(3) (Register 2024, No. 13).

This database is current through 10/9/26 Register 2026, No. 41.

Cal. Admin. Code tit. 11, § 301, 11 CA ADC § 301

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